

# Affiliate Partner Agreement

Combined: Stem Cell and Peptide. Editable template. Regenerative Revival.

This Affiliate Partner Agreement (the “Agreement”) is entered into as of [EFFECTIVE DATE] by and between [COMPANY LEGAL NAME], a [STATE] [ENTITY TYPE] (“Company”), and [PARTNER LEGAL NAME] (“Partner”). Company and Partner are each a “Party” and together the “Parties.”

*Template note: fields in [brackets] are meant to be edited for each Partner. Commission and payment terms live in Exhibit A so they can be updated without rewriting the body of this Agreement. This template is a starting point for review by Company’s legal counsel and is not legal advice.*

## 1. Engagement and Purpose

Company markets and coordinates access to its regenerative therapies (including mesenchymal stem cell (MSC) and exosome-based treatments) and medical-grade peptide programs (together, the “Offerings”). Partner wishes to promote these to its audience and to refer interested individuals to Company’s intake process. Company engages Partner as an independent, non-exclusive marketing and promotion partner on the terms below. Partner is not a healthcare provider and does not diagnose, treat, or deliver any medical service under this Agreement.

## 2. Definitions

- **Qualified Referral** means a prospective client who reaches Company through Partner’s unique tracking link or code and completes Company’s intake process.
- **Completed Transaction** means a treatment or sale that has been delivered or scheduled and paid for in full, and for which the applicable refund or cancellation window has passed.
- **Collected Revenue** means the amount Company actually collects from a client for a Completed Transaction, net of discounts, taxes, shipping, financing fees, and chargebacks.
- **Tracking Link/Code** means the unique referral link and/or promo code Company issues to Partner through Everflow for attribution.
- **Attribution Window** means the [30]-day period after a prospect first uses Partner’s Tracking Link/Code during which a resulting Completed Transaction is credited to Partner, subject to Company’s verification.

## 3. Scope of Offerings

This Agreement covers both (a) the stem cell and regenerative Services and (b) the peptide Products listed in Exhibit A, each with its own commission and payment terms as set out in that Exhibit.

## 4. Commission and Compensation

- Company will pay Partner the commission set out in **Exhibit A** (Commission and Payment Schedule).

- Commission is earned only on a Completed Transaction that is properly attributed to Partner's Tracking Link/Code within the Attribution Window and verified by Company.
- No commission is owed on a Partner's own personal purchases made with any personal-use discount code, on canceled or refunded transactions, or on amounts Company does not actually collect.
- Exhibit A may be updated by mutual written agreement of the Parties if rates change. For Company's open standard affiliate program, Company may update Exhibit A on a going-forward basis on [30] days' written notice. Commissions already earned are not affected by a later change.

## 5. Tracking and Attribution

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- Company issues Partner a unique Tracking Link and/or Code through Everflow. Partner must use only the Tracking Link/Code issued to it.
- Attribution is last-touch within the Attribution Window. For treatments, Company verifies attribution and completion before paying commission.
- Partner will not bid on Company brand terms in paid search, stuff cookies, spam, use incentivized clicks, or promote in any deceptive or non-compliant way. Self-referrals made to earn commission are not permitted.

## 6. Payment Terms

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- Company pays earned commissions on the schedule in Exhibit A (default: Net [30] from the date a Completed Transaction is verified, batched monthly).
- Company pays once Partner's payable balance reaches the minimum threshold of [\$ AMOUNT]. Payment method: [ACH / PayPal / other].
- Partner is an independent contractor responsible for its own taxes. Company will issue a Form 1099 where required, and Partner will provide a completed Form W-9 before the first payment.

## 7. Clawback and Adjustments

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- If a client cancels, refunds, or charges back a transaction, or if Company does not collect the full amount, the related commission is reversed.
- Company may offset reversed commissions against future payments or, if none are due, invoice Partner for the amount, payable within [15] days.

## 8. Compliance, Conduct, and Marketing Standards

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Partner agrees to the following at all times. These standards protect clients, Company, and Partner, and they reflect Company's medical compliance guidelines.

- **Not a medical provider.** Partner will not give medical advice, diagnose, recommend a specific treatment, or tell anyone whether they are a candidate. Partner will direct all medical questions to Company's intake and medical team.
- **Prohibited language.** Partner will not use the words "heal" or "cure," will not promise or guarantee outcomes, and will not claim that a therapy "fixes" any condition. Partner will use education-first language such as "support," "promote," "may help," or "designed to support."

- **Required disclaimers and disclosure.** Partner will include a candidacy disclaimer (for example, “not everyone is a candidate”) and a clear paid-partnership disclosure (for example, “#ad” or “paid partnership”) on all promotional content, consistent with FTC guidelines.
- **Approved materials only.** Partner will use only the marketing materials, claims, and testimonials approved by Company (see Exhibit B), and will not create new medical claims or use unapproved before-and-after or testimonial content.
- **Company review.** All Partner content that references Company or the Offerings is subject to Company review, and Company may require edits or removal.
- **No protected health information.** Partner will not collect, store, or handle any client medical or personal health information. Intake and medical communications run through Company’s systems only.
- **Compliance with law.** Partner will comply with all applicable laws, including FTC advertising rules and applicable state advertising and healthcare rules, and with Company’s compliance guidelines as updated from time to time.

## 9. Independent Contractor

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Partner is an independent contractor. Nothing in this Agreement creates an employment, agency, partnership, or joint venture relationship. Partner has no authority to bind Company, to set or quote prices other than Company’s published prices, or to act on Company’s behalf, and Partner is not entitled to employee benefits.

## 10. Representations and Warranties

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- Each Party has the authority to enter into this Agreement.
- Partner will perform bona fide marketing and promotional services, and the Parties intend that the compensation under this Agreement reflects the fair market value of those services and is not a payment for patient referrals.
- Partner will comply with the FTC Endorsement Guides and will clearly disclose its paid relationship with Company.
- If Partner is a licensed healthcare provider or a healthcare facility, Partner is responsible for complying with all laws that apply to it, including any fee-splitting, self-referral, and anti-kickback rules, and for confirming that its participation is permitted.

## 11. Confidentiality

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Each Party will keep the other’s non-public information confidential, including pricing, client lists, business plans, and the terms of this Agreement, and will use it only to perform under this Agreement. This Section survives termination.

## 12. Term and Termination

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- This Agreement begins on the Effective Date and continues for **[one year]**, then renews for successive **[one-year]** terms unless either Party gives **[30]** days’ written notice of non-renewal.

- Either Party may terminate for convenience on [30] days' written notice. Either Party may terminate immediately for a material breach not cured within [10] days of notice, and Company may suspend or terminate immediately for a compliance violation.
- On termination, Company will deactivate Partner's Tracking Link/Code, and will pay commissions earned on Completed Transactions before the termination date, subject to clawback. No commission is earned on transactions completed after termination.

### 13. Indemnification and Limitation of Liability

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- Each Party will indemnify the other against third-party claims arising from its own breach, negligence, or violation of law. Partner will indemnify Company for claims arising from Partner's marketing statements or non-compliant conduct.
- Except for indemnification obligations, breach of confidentiality, or willful misconduct, neither Party is liable for indirect or consequential damages, and each Party's total liability is limited to the commissions paid or payable in the [12] months before the claim.

### 14. General

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- **Governing law.** This Agreement is governed by the laws of the State of [STATE], without regard to its conflict-of-laws rules.
- **Entire agreement and amendment.** This Agreement, including its Exhibits, is the entire agreement between the Parties and replaces any prior understanding. It may be amended only in a writing signed by both Parties, except that Exhibit A may be updated as described in Section 4.
- **Assignment.** Partner may not assign this Agreement without Company's written consent. Company may assign it to an affiliate or successor.
- **Notices.** Notices must be in writing and sent to the contact information below or to an updated address provided in writing.
- **Severability and waiver.** If any provision is unenforceable, the rest remains in effect. A waiver is effective only if in writing.
- **Counterparts and electronic signature.** This Agreement may be signed in counterparts and by electronic signature, each an original.

**Agreed and accepted:**

**COMPANY:** [COMPANY LEGAL NAME]

By: \_\_\_\_\_ Date: \_\_\_\_\_

Name: [ ] Title: [ ]

**PARTNER:** [PARTNER LEGAL NAME]

By: \_\_\_\_\_ Date: \_\_\_\_\_

Name: [ ] Title: [ ]

# Exhibit A - Commission and Payment Schedule

Complete this Exhibit for each Partner. If rates change, replace it with a new signed Exhibit A.

This combined Exhibit sets out separate commission and payment terms for (1) stem cell Services and (2) peptide Products. Each part is tracked and paid on its own terms.

## Part 1 - Stem Cell Services

| Item                                                                                           | Commission to Partner                                                     | Earned when                                                | Notes              |
|------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------|------------------------------------------------------------|--------------------|
| Stem cell and regenerative Services (all treatment areas on Company's then-current price list) | [ ]% of Collected Revenue <b>OR</b> flat \$ [ ] per Completed Transaction | Treatment completed and paid in full; refund window passed | Cap, if any: \$[ ] |

**Payment schedule:** Net [30] from verification of a Completed Transaction, batched monthly.

**Minimum payout threshold:** \$[ ].

**Payment method:** [ACH / PayPal / other].

**Attribution window:** [30] days, last-touch.

## Part 2 - Peptide Programs

| Item                                                                                       | Commission to Partner                                                                   | Earned when                            | Notes                             |
|--------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------|----------------------------------------|-----------------------------------|
| Peptide programs (monthly subscription, all peptides on Company's then-current price list) | [ ]% of Collected Revenue (post-discount), recurring each month the client stays active | Each monthly order is paid and cleared | Recurring cap: [12 months / none] |

**Client discount code:** [PARTNERNAME10] (10% off for the Partner's clients; tracks the Partner's sales).

**Personal-use code (no commission):** [PARTNERNAME40] (40% off, the Partner's own purchases only; never shared with clients).

**Payment schedule:** paid on or before the [15th] of the month following the sale month (or Net [30] from each cleared monthly order; choose one).

**Minimum payout threshold:** \$[ ].

**Payment method:** [ACH / PayPal / other].

**Approved by Company:** \_\_\_\_\_ **Date:** \_\_\_\_\_

**Acknowledged by Partner:** \_\_\_\_\_ **Date:** \_\_\_\_\_

# Exhibit B - Approved Marketing Standards and Prohibited Language

These standards apply to all Partner content that references Company or its Offerings. They are the same for every Partner.

## Always do

- Use education-first, supportive language: “support,” “promote,” “may help,” “designed to support.”
- Include a candidacy disclaimer, for example: “Not everyone is a candidate. Eligibility is determined after a medical review.”
- Disclose the paid relationship on every post: “#ad” or “paid partnership with Regenerative Revival.”
- Use only Company-approved graphics, captions, and testimonials.
- Send anyone with medical questions to Company’s intake process.

## Never do

- Never use “heal” or “cure.”
- Never promise or guarantee results, or say a therapy “fixes” a condition.
- Never give medical advice or tell someone whether to get a treatment.
- Never make a claim that is not in the approved materials.
- Never share the 40% personal-use code with clients.
- Never collect or post a client’s medical or personal health information.

## Compliant phrasing examples

| Instead of                   | Use                                                                         |
|------------------------------|-----------------------------------------------------------------------------|
| “Stem cells heal your knees” | A regenerative approach designed to support joint health                    |
| “This cures neuropathy”      | May help support nerve-related symptoms; candidacy is reviewed individually |
| “Guaranteed results”         | Results vary, and not everyone is a candidate                               |